

Court No. - 21

Case :- WRIT - C No. - 21906 of 2024

Petitioner :- M/S Nirmala Dairy

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Niladra Shekhar Singh

Counsel for Respondent :- C.S.C.,Chetan Chatterjee

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Manish Kumar Nigam,J.

1. None present for the petitioner.
2. List as fresh on **18.07.2024.**

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)

Order Date :- 10.7.2024

Ankit.

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Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Niladra Shekhar Singh

Counsel for Respondent :- C.S.C.,Chetan Chatterjee

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Manish Kumar Nigam,J.

1. The petitioner has prayed for quashing of recovery citation dated 27.07.2021 issued by respondent No. 3 for recovery of electricity dues from the petitioner.

2. Shri Chetan Chatterjee, learned counsel for respondent, Electricity Department, submits that the petitioner has efficacious remedy under clause 6.5 of the Electricity Supply Code, 2005, which could not be disputed by learned counsel for the petitioner.

3. Accordingly, we decline to examine the challenge and leave it open to the petitioner to approach respondent No. 2 under Clause 6.5 of the Electricity Supply Code, 2005, for redressal of his grievance.

4. **Disposed of**, accordingly.

Order Date :- 25.7.2024

Mukesh Kr.

(Manish Kumar Nigam,J.) (Manoj Kumar Gupta,J.)